

Germany: Criminally Confiscated Assets Pathway for Ukraine

Operational Playbook (Finalized Confiscation Cases Only)

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! Strict Scope

This paper is limited to **criminal cases with finalized confiscation/forfeiture in Germany** (assets legally transferred to the state after criminal proceedings).

Excluded: assets only frozen/blocked under sanctions without a final criminal confiscation outcome.

! Practical Objective

Determine how Ukraine can lawfully obtain value from assets already confiscated by Germany in criminal proceedings, and what can be done immediately versus what needs legal/policy change.

1 Who Can Actually File (Plain Answer)

1.1 Can the think tank file claims itself?

Usually **no**. A think tank generally has no standing unless it is itself the direct injured owner/claimant.

1.2 Who should file instead?

Actor	Can file claim for confiscated proceeds?	Typical role
Govern- ment of Ukraine (authorized body)	Yes, where legal entitlement is shown	Primary public claimant
Ukrainian min- istry/agency	Yes, if it has legal mandate and victim link	Sector claimant (state property/public funds)
Ukrainian SOE	Yes, if direct victim/owner	Corporate claimant
Private victim (UA entity/per- son)	Yes, if directly harmed	Individual/corporate restitution claimant
German prosecutor	No, not as Ukraine's representative	Prosecutes crime, seeks confiscation <i>ex officio</i>
Think tank	Normally no	Case development, evidence package, coordination

1.3 Practical operating model for the think tank

1. Select candidate finalized cases and identify the legally strongest claimant.
2. Build the evidence dossier and litigation memo (ownership, tracing, damage, legal theory).
3. Transfer filing package to authorized claimant + German counsel.
4. Track deadlines, appeals status, and enforcement distribution stage.
5. Run parallel policy track for state-to-state transfer where claimant route is weak.

2 Restitution/compensation from confiscated proceeds

Pathway	What it does	Practical status
Restitution/compensation from confiscated proceeds	Priority channel where traceable victim entitlement exists	Available now with strong evidence

3 “Lawsuit Mechanism” - Operational Steps

3.1 Standing (Who can initiate)

- Ukraine as a state (through authorized governmental body)
- Ukrainian ministries/agencies with legal personality/mandate
- State-owned entities (if direct victim/owner)
- Other directly injured Ukrainian legal or natural persons
- Prosecutors act *ex officio* for confiscation, not as Ukraine’s private counsel
- Think tanks/research NGOs generally lack standing unless they are direct victims

3.2 Competent Forum / Authority

- Criminal court for confiscation order
- Prosecutor’s office during investigation/prosecution phase
- Enforcement authority for distribution/liquidation stage
- Civil court if separate civil claim is chosen
- Federal vs Land level depends on prosecutorial/court jurisdiction and asset destination in budget system

3.3 Filing Mechanics

- Written filing to competent court/authority; structured legal application
- German language (certified translation for supporting foreign documents)
- Representation by counsel admitted in Germany strongly required for effectiveness
- Service via court channels (electronic filing where enabled)
- Court/legal fees depend on procedural route and value in dispute

3.4 Evidentiary Package

- Proof of ownership/beneficial ownership
- Proof linking asset to predicate crime (including sanctions-evasion conduct where relevant)
- Victimhood and quantified damage
- Asset tracing and chain-of-custody materials
- Corporate records, banking records, transaction data
- Expert reports (forensics, valuation, tracing)

3.5 Timeline and Decision Points

1. Seizure order in criminal investigation
2. Indictment and trial
3. Confiscation order
4. Appeals/finality
5. Enforcement and liquidation
6. Distribution decision (victim restitution and/or public budget route)
7. Potential transfer mechanism toward Ukraine

3.6 Typical Obstacles / Defenses

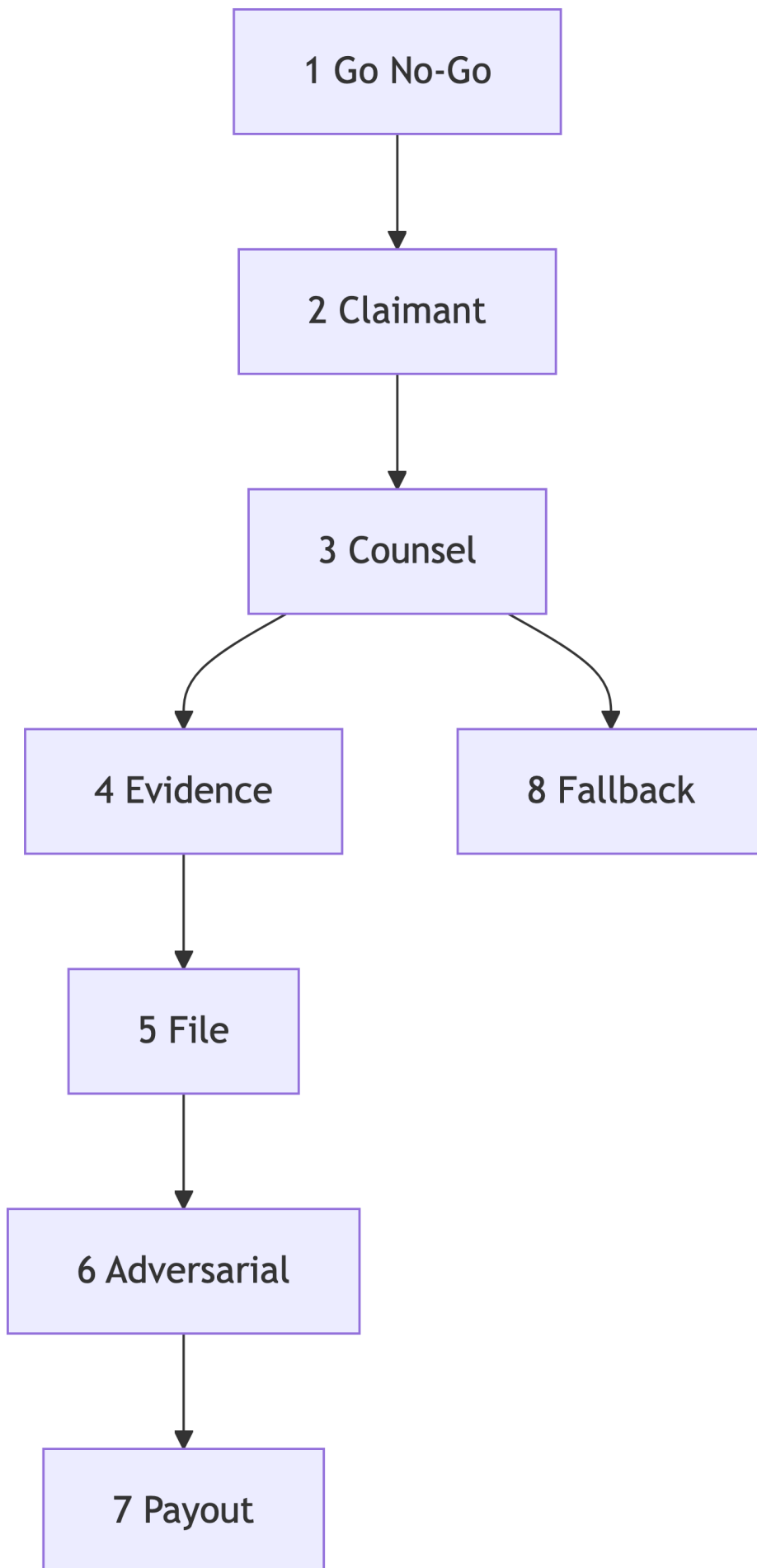
- Due process and proportionality objections
- Third-party rights and competing ownership claims
- Tracing failures (layered structures, nominees, offshore chains)
- Insufficient proof of direct victim entitlement
- Procedural timing misses and formal defects

4 Action Checklist (“How to Proceed”)

! Objective

Obtain payment/return from **already confiscated assets** in Germany through the victim/claimant route, and use a governmental route if claimant standing is unavailable.

4.1 Step-by-step execution plan



Step	Stage
1	Go/No-Go gate
2	Claimant selection
3	Counsel and strategy
4	Evidence package
5	File claim
6	Adversarial phase
7	Secure payout
8	Fallback track (parallel)

1. **Screen the case for legal eligibility (Go/No-Go gate).**
 - Confirm there is a **final criminal confiscation order** (finality reached after appeal period/appeals).
 - Confirm the target is confiscated property/proceeds, not only frozen sanctioned assets.
 - Identify which authority holds the file at enforcement stage (court/prosecutor/enforcement office).
2. **Select the legally strongest claimant.**
 - Pick one primary claimant: Ukraine state body, ministry/agency, SOE, or direct private victim.
 - Obtain formal mandate documents (authorizing act, power of attorney, signatory proof).
 - If the think tank has no standing, position it as technical support only.
3. **Instruct German counsel and lock procedural strategy.**
 - Engage counsel admitted in Germany for criminal-enforcement filings.
 - Choose route: restitution from confiscated proceeds, adhesion/civil add-on, or both.
 - Build a deadline calendar tied to notification dates and enforcement milestones.
4. **Build the minimum viable evidence package (without this, filing fails).**
 - Ownership/beneficial ownership proof (registries, contracts, account records).
 - Tracing file linking confiscated asset/proceeds to claimant loss.
 - Crime linkage evidence (sanctions-evasion/ML/corruption connection in case file).
 - Damage quantification with methodology and supporting documents.
 - Certified translations into German for all key documents.
5. **File the claim in the correct forum and format.**
 - Submit written application through counsel to the competent court/enforcement authority.
 - Include: legal basis, requested amount/asset, evidence index, and procedural requests.
 - Ensure service is completed correctly (electronic/registry channel as applicable).
6. **Actively manage adversarial phase.**
 - Respond to objections: third-party rights, proportionality, causation, tracing gaps.
 - Cure evidentiary defects fast (supplemental declarations, expert tracing reports).
 - Track hearings/orders and keep claimant instructions updated.
7. **Secure enforcement payout/transfer execution.**
 - After favorable decision, confirm payment order mechanics (account, currency, recipient legal identity).
 - Verify deductions/priority rules and net distributable amount.
 - Confirm treasury/enforcement processing timeline and written confirmation of transfer.
8. **Run fallback governmental track in parallel (risk control).**
 - If claimant standing or tracing is weak, prepare state-to-state transfer proposal package.
 - Use finalized confiscation facts + beneficiary safeguards (auditing, ring-fencing, reporting).
 - Coordinate with authorized Ukrainian and German governmental counterparts.

4.2 Documents you should prepare immediately

- Case-status memo proving final confiscation status
- Claimant mandate pack (authority + POA + legal personality evidence)
- Evidence index and chain-of-custody table
- Asset tracing report (transaction map + ownership map)
- Damages model (amount requested + calculation annexes)
- German-language filing set (application + exhibits list + certified translations)
- Deadline tracker (all statutory/procedural dates)

4.3 Practical success criteria

- Correct claimant with proven standing
- Direct linkage between confiscated value and claimant entitlement
- On-time filing with complete German-language evidentiary set
- Continuous enforcement follow-up until funds are actually transferred

5 Validated Case Studies (Framework-Mapped)

i Framework takeaways

1. Germany has a working victim-claim route after final confiscation, but it is technically strict and evidence-driven.
2. Cross-border transfers to victim populations usually require a second governmental agreement layer after confiscation.
3. Successful models combine: final forfeiture + clear beneficiary design + monitored transfer mechanism.

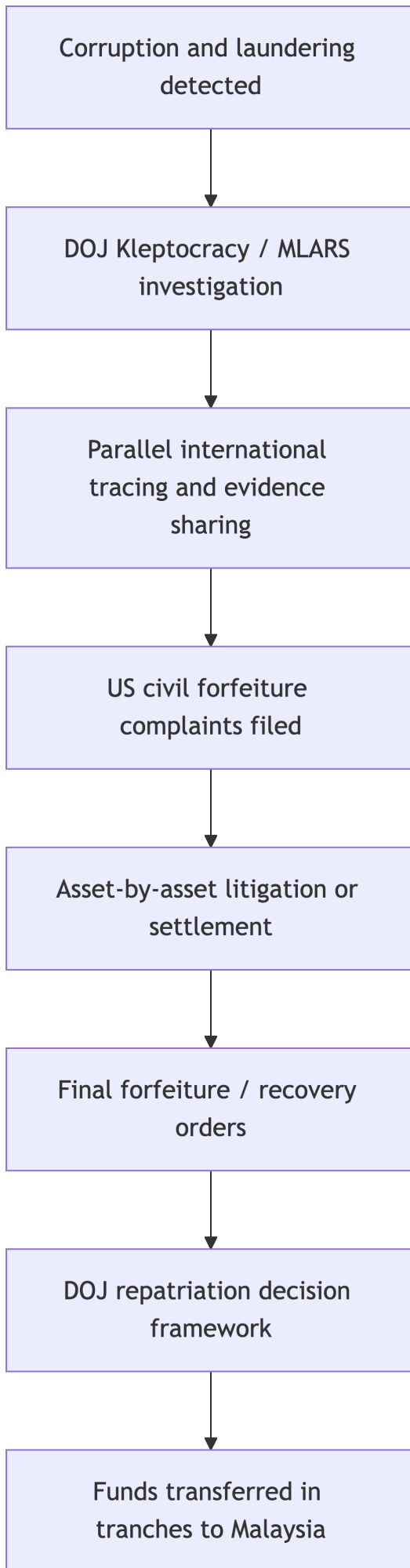
Case	Standing / Forum	Mechanism	Outcome	Lesson
Germany (Cum-Ex) OLG Köln 3 Ws 58-59/23 (Jul 2024)	Injured tax authorities as claimants; criminal enforcement phase	Claims after §459i notification; 6-month window; §459h(2) “mirror” linkage required	Court confirms mechanism; restricts payouts where linkage insufficient	Claimant route works; tracing/legal qualification is the bottleneck
US → Malaysia (1MDB)	US DOJ MLARS led forfeiture; Malaysia as beneficiary	Forfeiture litigation → DOJ repatriation decisions	41 actions since Jul 2016; >\$1.7bn seized; ~\$1.4bn returned (incl. \$452m Aug 2021, \$156m Jun 2024) to 1MDB Asset Recovery Trust Account	Large returns need long forfeiture phase + dedicated repatriation channel
US Madoff Victim Fund	Victims submit remission claims; DOJ/Special Master administers	Petition-based victim compensation	10th/final distribution Dec 2024; >\$4.3bn to 40,930 victims (~93.71% recovery) £4.2m returned for public-benefit projects	Specialized compensation administrator improves payout speed/scale
UK → Nigeria (Ibori)	UK prosecutors recovered; Nigeria as victim state	UK–Nigeria agreement (9 Mar 2021)		Confiscation alone did not complete transfer; bilateral agreement operationalized destination
Switzerland → Nigeria (Abacha II)	Swiss authorities post-criminal; Nigeria beneficiary	2017 Switzerland– Nigeria–World Bank tripartite agreement	~USD 321m restitution with monitoring safeguards	Monitoring architecture reduces misuse risk, unlocks political/legal acceptance
Switzer- land/Lux- embourg → Peru	State authorities via cooperation framework	2020 trilateral agreement; earlier ~USD 93m (2002–2006)	~USD 26m to justice-sector strengthening	Restitution can be earmarked to rule-of-law infrastructure

Implication for Germany–Ukraine: Feasible now: victim/claimant route in finalized confiscation files (strict proof burden). Missing for scale: standing transfer framework converting German-confiscated value into structured Ukraine-directed disbursement. Best historical analogue: Swiss/UK style post-confiscation transfer agreement + safeguards.

Sources: OLG Köln 3 Ws 58-59/23; DOJ 1MDB (Jun 2024), Madoff (Dec 2024); UK–Nigeria (Mar 2021); Switzerland–Nigeria (Dec 2017); Switzerland/Luxembourg–Peru (Dec 2020).

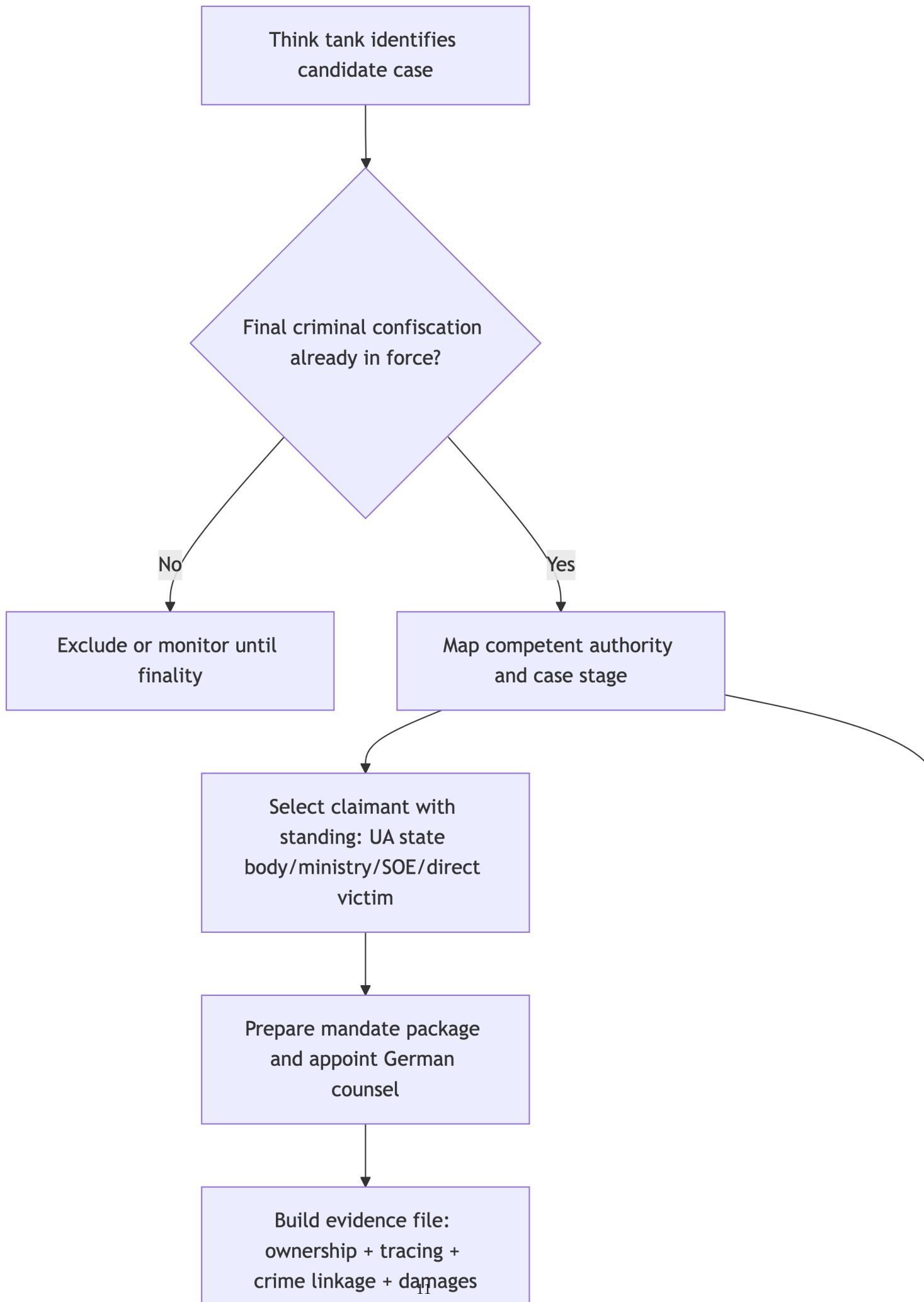
6 Comparative Execution Diagrams

6.1 Diagram 1: US -> Malaysia (1MDB) Playbook



US -> Malaysia (1MDB): forfeiture-to-repatriation execution model

6.2 Diagram 2: Germany -> Ukraine (Think Tank Operational Model)



Ukraine pathway: how a think tank supports claims over finalized German confiscations